

STATE OF NEW YORK

5442--B

2025-2026 Regular Sessions

IN ASSEMBLY

February 14, 2025

Introduced by M. of A. MAMDANI, FORREST, LEVENBERG, SHRESTHA, K. BROWN, VALDEZ, McDONOUGH -- read once and referred to the Committee on Energy -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public service law, in relation to enacting the "rate hike notice act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "rate hike notice act".

3 § 2. Subdivision 12 of section 66 of the public service law is amended
4 by adding a new paragraph (m) to read as follows:

5 (m) Within one business day of the publication of the information
6 required pursuant to subparagraph (i) of paragraph (l) of this subdivi-
7 sion, the commission shall require each utility to send electronic
8 notice of a proposed rate increase via text to all customers for whom
9 such utility contacts through text provided that such customers have
10 been provided an option to opt-out of such contact. The text shall
11 inform such customer that such utility is proposing a rate increase in
12 the customer's service area. Such text shall contain the following:

13 (i) the name of the utility proposing a rate increase;

14 (ii) the percentage increase to electricity and gas rates for the
15 typical residential customer;

16 (iii) the percentage increase to electricity and gas rates for the
17 typical commercial customer;

18 (iv) instructions for where ratepayers can find additional information
19 pertaining to the rate case; and

20 (v) clarification that this rate increase will not take effect until
21 approved or modified by the commission. Further, within one business

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 day of the publication of the information required pursuant to subpara-
2 graph (i) of paragraph (l) of this subdivision, the commission shall
3 also require each utility to send electronic notice of a proposed rate
4 increase via email to all customers for whom such utility contacts
5 through email, provided that such customers have been provided an option
6 to opt-out of such contact, and such email notice shall include informa-
7 tion identical to the information provided on the commission's website
8 pursuant to paragraph (l) of this subdivision. In addition, each utility
9 shall include a notice of a proposed rate increase in each customer's
10 next monthly bill statement and such notice in the monthly billing
11 statement shall consist of a separate page which shall include informa-
12 tion identical to the information provided on the commission's website
13 pursuant to paragraph (l) of this subdivision.

14 § 3. This act shall take effect on the sixtieth day after it shall
15 have become a law; provided, however, it shall not apply to any proceed-
16 ing before the Public Service Commission relating to a major change in
17 rates that was commenced prior to the effective date. Effective imme-
18 diately, the addition, amendment and/or repeal of any rule or regulation
19 necessary for the implementation of this act on its effective date are
20 authorized to be made and completed on or before such effective date.